

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT: OTHER PARENT/PARTY:	
APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM—CIVIL AND FAMILY LAW ☐ ☐ ☐ EX PARTE	CASE NUMBER:
<i>This form is for use in a civil or family law proceeding in which a party is a minor, a person who lacks legal capacity to make decisions, or a person for whom a conservator has been appointed. A person who seeks the appointment of a guardian ad litem in a proceeding under the Probate Code—other than a proceeding under Probate Code sections 3500–3613 for approval of a compromise, settlement, or disposition of judgment proceeds—should use form DE-350/GC-100. NOTE: A person may not act as a guardian ad litem unless the person is represented by an attorney, is an attorney, or, in an action under the Uniform Parentage Act (Family Code, §§ 7600–7730), is an adult relative of a minor party.</i>	

1. I (applicant's name):
am (check all that apply):
 - a. ☐ the parent of (name):
 - b. ☐ the guardian of (name):
 - c. ☐ the conservator of (name):
 - d. ☐ a party to the suit.
 - e. ☐ the minor to be represented (if the minor is 14 years of age or older).
 - f. ☐ another interested person (specify capacity):
2. I am asking the court to appoint the following person as guardian ad litem (name, address, phone number, and email address):

3. The guardian ad litem will represent the interest of (name, address, and, if applicable, phone number and email address):

4. The person named in item 3 is a party and is (check all that apply):
 - a. ☐ a minor (date of birth):
 - b. ☐ a person who lacks legal capacity to make decisions (explain the basis for claiming lack of capacity):

 - ☐ Continued on Attachment 4b.
 - c. ☐ a person for whom a conservator has been appointed (provide the details of the appointment):

☐ Continued on Attachment 4c.

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5. ☐ ☐ The person named in item 3 is a minor and is (*check one*):
- a. ☐ ☐ a plaintiff or petitioner in this action and the summons has not been issued.
- b. ☐ ☐ a defendant or respondent in this action. More than 10 days have passed since service of the summons, and no one has applied for the appointment of a guardian ad litem.
6. I am asking the court to appoint a guardian ad litem because the person named in item 3 (*check all that apply*):
- a. ☐ ☐ is a minor who is a party to an action under the Uniform Parentage Act (Family Code, §§ 7600–7730).
- b. ☐ ☐ is a minor who is requesting or opposing a request for an injunction or restraining order described in Code of Civil Procedure sections 372(b)(1) and 374(a). (*If the minor is 12 years of age or older, check one of the following*):
- The minor ☐ ☐ does ☐ ☐ does not ☐ ☐ object to the appointment of the person named in item 2.
- ☐ ☐ I don't know whether the minor objects to the appointment of the person named in item 2.
- c. ☐ ☐ has no guardian or conservator of the estate.
- d. ☐ ☐ has a guardian or conservator of the estate, but the guardian or conservator is inadequate to represent the person's interest in this action or proceeding because (*explain*):

☐ ☐ Continued on Attachment 6d.

The guardian or conservator of the estate is (*name, address, telephone number, and email address*):

(*After filing this application, you must give notice and a copy of the application to the guardian or conservator above.*)

7. The proposed guardian ad litem is fully competent and qualified to understand and protect the rights of the person named in item 3.

		
(TYPE OR PRINT NAME)		(SIGNATURE OF ATTORNEY)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

		
(TYPE OR PRINT NAME)		(SIGNATURE OF APPLICANT)

DISCLOSURES AND CONSENT TO ACT AS GUARDIAN AD LITEM

8. I have the following relationship with the person named in item 3 (*check one*):
- a. ☐ ☐ No relationship
- b. ☐ ☐ A familial relationship (*specify*):
- c. ☐ ☐ An affiliate (nonfamilial) relationship (*specify*):
9. I am (*check one*):
- a. ☐ ☐ not aware of any actual or potential conflicts of interest that would or might arise from the appointment.
- b. ☐ ☐ aware of the following actual or potential conflicts that would or might arise from the appointment (*describe the actual or potential conflicts of interest and explain why the proposed guardian should still be appointed*):

☐ ☐ Continued on Attachment 9b.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I consent to act as guardian ad litem in this action or proceeding. If I become aware that a potential conflict of interest has become an actual conflict, or that a new potential or actual conflict exists, I will promptly disclose the conflict of interest to the court.

Date:

		
(TYPE OR PRINT NAME)		(SIGNATURE OF PROPOSED GUARDIAN AD LITEM)